RESOLUTION MSC.521(106)
(adopted on 10 November 2022)

AMENDMENTS TO THE INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974 (CHAPTER XV)

THE MARITIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

RECALLING ALSO article VIII(b) of the International Convention for the Safety of Life at Sea, 1974 ("the Convention"), concerning the amendment procedure applicable to the annex to the Convention, other than to the provisions of chapter I,

HAVING CONSIDERED, at its 106th session, amendments to the Convention proposed and circulated in accordance with article VIII(b)(i) of the Convention,

1 ADOPTS, in accordance with article VIII(b)(iv) of the Convention, amendments to the Convention, the text of which is set out in the annex to the present resolution;

2 DETERMINES, in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the said amendments shall be deemed to have been accepted on 1 January 2024, unless, prior to that date, more than one-third of the Contracting Governments to the Convention or Contracting Governments the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet have notified the Secretary-General of their objections to the amendments;

3 INVITES Contracting Governments to the Convention to note that, in accordance with article VIII(b)(vii)(2) of the Convention, the amendments shall enter into force on 1 July 2024, upon their acceptance in accordance with paragraph 2 above;

4 REQUESTS the Secretary-General, for the purposes of article VIII(b)(v) of the Convention, to transmit certified copies of the present resolution and the text of the amendments contained in the annex to all Contracting Governments to the Convention;

5 ALSO REQUESTS the Secretary-General to transmit copies of this resolution and its annex to Members of the Organization which are not Contracting Governments to the Convention.

ANNEX

AMENDMENTS TO THE INTERNATIONAL CONVENTION FOR THE SAFETY OF LIFE AT SEA, 1974

CHAPTER XV
SAFETY MEASURES FOR SHIPS CARRYING INDUSTRIAL PERSONNEL

The following new chapter XV (Safety measures for ships carrying industrial personnel) is added after existing chapter XIV (Safety measures for ships operating in polar waters):

"CHAPTER XV
Safety measures for ships carrying industrial personnel

Regulation 1 – *Definitions*

For the purpose of this chapter:

1 *Industrial personnel (IP)* means all persons transported or accommodated on board for the purpose of offshore industrial activities performed on board other ships and/or offshore facilities.

2 *IP Code* means the International Code of Safety for Ships Carrying Industrial personnel, as adopted by the Maritime Safety Committee by resolution MSC.527(106), as may be amended, provided that such amendments are adopted, brought into force and take effect in accordance with the provisions of article VIII of the present Convention concerning the amendment procedures applicable to the annex other than chapter I.

3 *Offshore industrial activities* mean the construction, maintenance, decommissioning, operation or servicing of offshore facilities related, but not limited to, exploration and exploitation of resources by the renewable or hydrocarbon energy sectors, aquaculture, ocean mining or similar activities.

4 *HSC Code* means the International Code of Safety for High-Speed Craft, 2000, adopted by the Maritime Safety Committee by resolution MSC.97(73), as may be amended, provided that such amendments are adopted, brought into force and take effect in accordance with the provisions of article VIII of the present Convention concerning the amendment procedures applicable to the annex other than chapter I.

Regulation 2 – *General*

1 Wherever in the IP Code a reference is made to passenger ship requirements, the corresponding cargo ship requirements are deemed to be complied with.

2 For the purpose of this chapter, industrial personnel shall not be treated or considered as passengers.

3 Wherever in this chapter, or in the IP Code, the number of industrial personnel appears as a parameter, it shall be the aggregate number of industrial personnel, special personnel* and passengers carried on board, where the number of passengers shall not exceed 12.

4 Notwithstanding the provisions of regulation 2.1 above, for high-speed craft to which chapter X applies and notwithstanding the provisions of chapters 2 to 12 and 18 of the HSC Code, a ship certified in accordance with the requirements of this chapter and the IP Code shall be deemed to have complied with the requirements of chapters 2 to 12 and 18 of the HSC Code.

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* Refer to the Code of Safety for Special Purpose Ships, 2008.

Regulation *3 – Application*

1 Unless expressly provided otherwise, this chapter applies to cargo ships and high-speed cargo craft, of 500 gross tonnage and upwards, constructed on or after 1 July 2024 which carry more than 12 industrial personnel.

2 Cargo ships constructed before 1 July 2024, authorized by the Administration to carry more than 12 industrial personnel in accordance with the recommendations developed by the Organization, shall comply with regulations III/1, III/2 (except for paragraph 2.1.7), IV/7 and IV/8 of the IP Code by the first intermediate or renewal survey, whichever occurs first, after 1 July 2024.

3 High-speed cargo craft constructed before 1 July 2024, authorized by the Administration to carry more than 12 industrial personnel in accordance with the recommendations developed by the Organization, shall comply with regulations III/1, III/2 (except for paragraph 2.1.7), V/7 and V/8 of the IP Code by the third periodical or first renewal survey, whichever occurs first, after 1 July 2024.

4 Cargo ships and high-speed cargo craft, irrespective of date of construction, which prior to the 1 July 2024 have not been authorized by the Administration to carry more than 12 industrial personnel based on the recommendations developed by the Organization, shall comply and be certified in accordance with this chapter and the IP Code prior to the carriage of more than 12 industrial personnel on board.

5 For the purpose of this chapter, the expression *constructed* refers to the description given in regulations:

.1 II-2/1.1.2.1, as complemented by regulation II-2/1.1.3 for cargo ships; and

.2 X/1.4, as complemented by regulation X/1.5 for high-speed cargo craft.

Regulation 4 – *Application of other chapters*

1 The regulations for cargo ships contained in the other chapters of the present Convention apply to ships described in regulation 3.1 above, except as modified by this chapter.

2 Notwithstanding the provisions of regulation 4.1 above, for high-speed craft to which the HSC Code applies, the regulations for cargo craft in that Code apply except as modified by this chapter.

Regulation 5 – *Requirements*

1 Ships and high-speed craft to which this chapter applies shall:

.1 be certified as a cargo ship or high-speed cargo craft in accordance with either chapter I or chapter VIII or chapter X, as applicable;

.2 meet the requirements of the IP Code; and

.3 in addition to the requirements of regulations I/8, I/9 and I/10 or of sections 1.5 to 1.9 of the HSC Code, as applicable, be surveyed and certified, as provided for in the IP Code.

2 Ships and high-speed craft to which this chapter applies, holding a certificate issued pursuant to the provisions of regulation 5.1 above, shall be subject to the control established in regulation I/19 or XI-1/4, and in 1.10 of the HSC Code, as applicable. For this purpose, such certificates shall be treated as a certificate issued under regulation I/12 or I/13."